

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

TCW, INC., *Claimant*

v.

MAERSK A/S AND MAERSK LINE U.S.A., INC. AS AGENT
FOR MAERSK A/S (DBA MAERSK LINE, MAERSK LINE
LIMITED, SAFMARINE, SEALAND), *Respondents*.

DOCKET NO. 1991(I)

Served: April 26, 2023

BEFORE: Theresa DIKE, *Small Claims Officer*.

NOTICE OF DISMISSAL

On March 17, 2023, the Secretary of the Federal Maritime Commission issued a Notice of Filing of Small Claims Complaint and Assignment (“Notice”), stating that Claimant TCW, Inc. (“TCW”) had filed an informal complaint against Respondents Maersk A/S and Maersk Line U.S.A., as Agent for Maersk A/S (dba Maersk Line, Maersk Line Limited, Safmarine, Sealand) (“Maersk”). TCW alleges that Respondents’ charging of “street turn” or “usage” fees to motor carriers who reutilize an empty import container for an export booking constitutes a violation of 46 U.S.C. § 41102(c).

The Secretary instructed Respondents to file an answer to the Claim by April 10, 2023, and indicate whether they consent to the adjudication of the Claim under the informal procedures provided at Subpart S of the Commission’s Rules of Practice and Procedure (46 C.F.R. § 502.301-305). The Secretary also assigned the proceeding to the Chief Administrative Law Judge to designate a Small Claims Officer to adjudicate the complaint.

On April 5, 2023, Claimant sent an email to the Secretary, to which it attached a letter, asking that its claim be dismissed. Respondent has not yet filed a response to the Claim and did not object to the adjudication of this Claim under the informal procedures. Accordingly, the Chief Administrative Law Judge assigned this proceeding to the undersigned for adjudication under the Commission’s informal procedures on April 26, 2023.

Complainant asks that its Claim against Respondents be dismissed with prejudice, because the “parties have fully and finally settled this dispute through amicable negotiation and mutually agreed consideration.” Letter at 1. Further, Claimant states in its email that “Maersk has agreed to refund the charge in question and has agreed to discontinue charging TCW moving forward.” Email from Ben Banks (VP of TCW) to the Secretary, dated April 5, 2023. Upon

further inquiry as to whether a written settlement agreement was prepared by the parties, Claimant states that the parties “did not execute a formal settlement agreement” but merely communicated by email. Email from Ben Bank to the Office of the Administrative Law Judges dated April 25, 2023.

The Commission’s Rule 72(a)(1) provides:

When no settlement agreement is involved, the complainant may dismiss an action without an order from the presiding officer by filing a notice of dismissal before the opposing party serves either an answer, a motion to dismiss, or a motion for summary decision. Unless the notice or stipulation states otherwise, the dismissal is without prejudice.

46 C.F.R. § 502.72(a)(1). Although Rule 72, governing dismissal of Commission proceedings, is not applicable to Subpart S proceedings, the undersigned used the rule as a guide for ruling on Claimant’s request to dismiss the Claim.

The information submitted by Claimant indicates that the parties did not enter into a settlement agreement, but that Respondent refunded the fee in dispute and undertook not to charge them in the future. Even if the email communications between the parties were viewed as a settlement under 46 C.F.R. § 502.72(a)(3), the settlement meets the criteria for approval. It does not show any indicia of fraud, duress, undue influence, or mistake and appears to reflect an arm’s-length resolution between the parties. The terms appear to be fair, reasonable, and adequate, as Respondent has agreed to refund Claimant the fees at issue and not to charge them in the future.

Accordingly, for the reasons discussed above, Claimant’s request to dismiss this proceeding is granted and this proceeding is **DISMISSED WITH PREJUDICE**.



Theresa Dike
Small Claims Officer